

**OFFICE OF THE SECRETARY**

P.O. Box 942883  
Sacramento, CA 94283-0001



September 20, 2018

Honorable William S. Lebov  
Judge of the Superior Court  
County of Riverside  
46-200 Oasis Street  
Indio, CA 92201

Re: Perez, Raymond Rudy  
CDC No.: AG0813  
Case No.: INF065586  
Date of Sentence: 12/30/2010

Dear Honorable William S. Lebov:

The purpose of this letter is to provide the court with authority to resentence Raymond Rudy Perez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Perez was sentenced in 2010, and was convicted of section 245, subdivision (A)(2) Aslt DWI W/Gun. The trial court sentenced inmate Perez on 12/30/2010. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Perez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Perez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,

  
RALPH M. DIAZ  
Secretary (A)

Enclosures:  
Abstract of Judgment-Prison Commitment-Determinate  
Minute Order  
Information/Complaint

cc: Honorable Becky Lynn Dugan, Riverside County Presiding Judge  
Riverside District Attorney  
Private Attorney



DMC 0-200-100

AG0813 ✓ AG0813

CR-290

**Prop 69 — court order ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE**

[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

Date 1-11-2011

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|                                                                                                                                                                                                                                |                               |                                                                                                               |                                                                                   |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------|---------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------|
| SUPERIOR COURT OF CALIFORNIA, COUNTY OF: <b>Riverside</b>                                                                                                                                                                      |                               | <b>FILED</b><br>SUPERIOR COURT OF CALIFORNIA<br>COUNTY OF RIVERSIDE<br><b>JAN 05 2011</b><br><b>R. Zulauf</b> |                                                                                   |
| PEOPLE OF THE STATE OF CALIFORNIA vs. <b>RAYMOND RUDY PEREZ</b><br>DEFENDANT: <b>RAYMOND RUDY PEREZ</b><br>AKA:<br>CII#: <b>A30173767</b><br>BOOKING #: <b>200921184</b><br>COMMITMENT TO STATE PRISON<br>ABSTRACT OF JUDGMENT |                               | DOB: <b>12/09/1990</b><br>INF065586 ✓ -A<br>-B<br>-C<br>-D                                                    | <input type="checkbox"/> NOT PRESENT<br><input type="checkbox"/> AMENDED ABSTRACT |
| DATE OF HEARING<br><b>12/30/2010</b>                                                                                                                                                                                           | DEPT. NO.<br><b>3N</b>        | JUDGE<br><b>William S. Lebov</b>                                                                              |                                                                                   |
| CLERK<br><b>R. Avila</b>                                                                                                                                                                                                       | REPORTER<br><b>J. Gimenez</b> | PROBATION NO. OR PROBATION OFFICER<br><input checked="" type="checkbox"/> IMMEDIATE SENTENCING                |                                                                                   |
| COUNSEL FOR PEOPLE<br><b>DDA J. Silva</b>                                                                                                                                                                                      |                               | COUNSEL FOR DEFENDANT<br><b>PVT F. Fasconelli</b>                                                             |                                                                                   |

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment  
 \_\_\_\_ (number of pages attached)

| COUNT | CODE | SECTION NO. | CRIME           | YEAR CRIME COMMITTED | DATE OF CONVICTION (MO/DAY/YR) | CONVICTED BY |       |      | TERM (JULY) | CONCURRENT | CONSECUTIVE 1/3 VIOLENT | CONSECUTIVE 1/3 NON-VIOLENT | CONSECUTIVE FULL TERM | INCOMPLETE SENTENCE (per PC 654) | 654 STAY | PRINCIPAL OR CONSECUTIVE TIME IMPOSED |      |
|-------|------|-------------|-----------------|----------------------|--------------------------------|--------------|-------|------|-------------|------------|-------------------------|-----------------------------|-----------------------|----------------------------------|----------|---------------------------------------|------|
|       |      |             |                 |                      |                                | JURY         | COURT | PLEA |             |            |                         |                             |                       |                                  |          | YRS.                                  | MOS. |
| 3     | PC   | 245(A)(2)   | Aslt DWI W/ Gun | 09                   | 12/30/10                       |              |       | X    | M           |            |                         |                             |                       |                                  |          | 3                                     |      |
|       |      |             |                 |                      |                                |              |       |      |             |            |                         |                             |                       |                                  |          |                                       |      |
|       |      |             |                 |                      |                                |              |       |      |             |            |                         |                             |                       |                                  |          |                                       |      |
|       |      |             |                 |                      |                                |              |       |      |             |            |                         |                             |                       |                                  |          |                                       |      |
|       |      |             |                 |                      |                                |              |       |      |             |            |                         |                             |                       |                                  |          |                                       |      |
|       |      |             |                 |                      |                                |              |       |      |             |            |                         |                             |                       |                                  |          |                                       |      |

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

| COUNT | ENHANCEMENT   | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT   | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT  | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | TOTAL |
|-------|---------------|--------------------------------|---------------|--------------------------------|--------------|--------------------------------|-------------|--------------------------------|-------|
| 3     | PC 12022.7(A) | 03                             | PC 12022.5(A) | 03                             | PC 186.22(B) | 03                             |             |                                | 9     |
|       |               |                                |               |                                |              |                                |             |                                |       |
|       |               |                                |               |                                |              |                                |             |                                |       |
|       |               |                                |               |                                |              |                                |             |                                |       |
|       |               |                                |               |                                |              |                                |             |                                |       |
|       |               |                                |               |                                |              |                                |             |                                |       |

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

| ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | TOTAL |
|-------------|--------------------------------|-------------|--------------------------------|-------------|--------------------------------|-------------|--------------------------------|-------|
|             |                                |             |                                |             |                                |             |                                |       |
|             |                                |             |                                |             |                                |             |                                |       |
|             |                                |             |                                |             |                                |             |                                |       |
|             |                                |             |                                |             |                                |             |                                |       |

4. ☐ Defendant was sentenced per ☐ PC 667(b)-(i) or PC 1170.12 (two-strikes)  
☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed (Paper Commitment). Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

| COUNTY | CASE NUMBER |
|--------|-------------|
|        |             |
|        |             |
|        |             |

6. TOTAL TIME ON ATTACHED PAGES:   
 7. ☐ Additional indeterminate term (see CR-292).  
 8. TOTAL TIME EXCLUDING COUNTY JAIL TERM:  12

This form is prescribed under PC 1213.5 to satisfy the requirements of PC1213 for determinate sentences. Attachments may be used but must be referred to in this document.

Page 1 of 2



## 9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

## a. Restitution Fine(s):

Case A: \$ 200.00 per PC 1202.4(b) forthwith per PC 2085.5; \$ 200.00 per PC 1202.45(b) suspended unless parole is revoked  
\$ \_\_\_\_\_ per PC 1202.44 is now due, probation having been revoked.  
Case B: \$ \_\_\_\_\_ per PC 1202.4(b) forthwith per PC 2085.5; \$ \_\_\_\_\_ per PC 1202.45(b) suspended unless parole is revoked  
\$ \_\_\_\_\_ per PC 1202.44 is now due, probation having been revoked.  
Case C: \$ \_\_\_\_\_ per PC 1202.4(b) forthwith per PC 2085.5; \$ \_\_\_\_\_ per PC 1202.45(b) suspended unless parole is revoked  
\$ \_\_\_\_\_ per PC 1202.44 is now due, probation having been revoked.  
Case D: \$ \_\_\_\_\_ per PC 1202.4(b) forthwith per PC 2085.5; \$ \_\_\_\_\_ per PC 1202.45(b) suspended unless parole is revoked  
\$ \_\_\_\_\_ per PC 1202.44 is now due, probation having been revoked.

## b. Restitution per PC 1202.4(f):

Case A: \$ \_\_\_\_\_ ☐ Amount to be determined to ☐ victim(s)\* ☐ Restitution Fund  
Case B: \$ \_\_\_\_\_ ☐ Amount to be determined to ☐ victim(s)\* ☐ Restitution Fund  
Case C: \$ \_\_\_\_\_ ☐ Amount to be determined to ☐ victim(s)\* ☐ Restitution Fund  
Case D: \$ \_\_\_\_\_ ☐ Amount to be determined to ☐ victim(s)\* ☐ Restitution Fund

☐ \* Victim names(s), if known, and amount breakdown in item 11, below ☐ \* Victim names(s) in probation officer's report.

## c. Fine(s):

Case A: \$ \_\_\_\_\_ per PC 1202.5. \$ \_\_\_\_\_ per VC 23550 or \_\_\_\_\_ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive  
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ \_\_\_\_\_ Drug Program Fee per HS 11372.7(a) for each qualifying offense  
Case B: \$ \_\_\_\_\_ per PC 1202.5. \$ \_\_\_\_\_ per VC 23550 or \_\_\_\_\_ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive  
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ \_\_\_\_\_ Drug Program Fee per HS 11372.7(a) for each qualifying offense  
Case C: \$ \_\_\_\_\_ per PC 1202.5. \$ \_\_\_\_\_ per VC 23550 or \_\_\_\_\_ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive  
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ \_\_\_\_\_ Drug Program Fee per HS 11372.7(a) for each qualifying offense  
Case D: \$ \_\_\_\_\_ per PC 1202.5. \$ \_\_\_\_\_ per VC 23550 or \_\_\_\_\_ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive  
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ \_\_\_\_\_ Drug Program Fee per HS 11372.7(a) for each qualifying offense

## d. Court Security Fee: \$ \_\_\_\_\_ per PC 1465.8

10. TESTING a. ☐ Compliance with PC 296 verified b. ☒ DNA Pursuant to PC 296 c. ☐ AIDS pursuant to PC 1202.1 d. ☐ other (specify):

## 11. Other orders (specify):

## 12. IMMEDIATE SENTENCING:

☒ Probation to prepare and submit post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin: Hispanic

## 13. EXECUTION OF SENTENCE IMPOSED

- a. ☒ at initial sentencing hearing  
b. ☐ at resentencing per decision on appeal  
c. ☐ after revocation of probation  
d. ☐ at resentencing per recall of commitment (PC 1170(d).)  
e. ☐ Other (specify):

## 14. CREDIT FOR TIME SERVED

| CASE                       | TOTAL CREDITS | ACTUAL                                                                                  | LOCAL CONDUCT                                                    |
|----------------------------|---------------|-----------------------------------------------------------------------------------------|------------------------------------------------------------------|
| A                          | 680           | 592                                                                                     | 88 <input checked="" type="checkbox"/> 4019<br>2933.1            |
| B                          |               |                                                                                         | <input type="checkbox"/> 4019<br><input type="checkbox"/> 2933.1 |
| C                          |               |                                                                                         | <input type="checkbox"/> 4019<br><input type="checkbox"/> 2933.1 |
| D                          |               |                                                                                         | <input type="checkbox"/> 4019<br><input type="checkbox"/> 2933.1 |
| Date Sentenced Pronounced: |               | Time Served in State Institution:                                                       |                                                                  |
| 12/30/10                   |               | <input type="checkbox"/> DMH <input type="checkbox"/> CDCR <input type="checkbox"/> CRC |                                                                  |

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.  
To be delivered to ☐ the reception center designated by the director of the California Department of Corrections.  
☐ other (specify):

I hereby certify the foregoing to be a correct abstract of the judgment made in this action

DEPUTY'S SIGNATURE

DATE

01/03/2011